

13 September 2024

Cory Shepherd
104158 Scarborough Street
SOUTHPORT QLD 4215

Dear Cory

Your WorkCover Queensland Claim S23LW142013

I'm writing about your application for workers' compensation received by WorkCover Queensland on 1 July 2024.

After reviewing the information available to me, this claim is unable to be accepted.

I encourage you to read the attached decision, which includes detailed reasons. These are difficult decisions made on available information and using legislation. At times, conflicting information or different versions of events are assessed to reach a conclusion.

Every decision is reviewed and confirmed by a manager. You may also request an external review. Any request for an independent review of this decision must be made within three months of receiving this letter. I've attached information to help with this choice.

As this claim has not been accepted, only accounts or services previously approved by WorkCover Queensland can be paid. I realise this might be an uncertain time, and I've included information on options for accessing treatment and services that may help in your recovery.

I remain available to answer any questions you may have. Please call 07 3006 8493 or email me so I can help.

Yours sincerely

Amy Mo
Claims Representative

Decision reviewed by:

Janet Papageorgiou
Customer Manager

For more information on our privacy policy go to [worksafe.qld.gov.au/about/privacy](https://www.worksafe.qld.gov.au/about/privacy)

ATTACHMENT: CLAIM DECISION

A decision is based on the [Workers' Compensation and Rehabilitation Act 2003](#) (the Act) and other regulations. Relevant sections have been attached.

Summary of decision

To accept an application for compensation, the requirements of the Act must be met. It's my decision that:

You have not sustained an injury as per the definition of section 32(5) of the Ac

This means that WorkCover Queensland is unable to accept this claim.

What has been assessed

To reach a decision, I consider the information available and the requirements of the Act. I must confirm that:

- the claim was lodged in time (*Section 131*)
- a person is a Queensland worker (*Section 11*)
- employment was a significant contributing factor to the injury (*Section 32*).

These requirements have been met.

The focus of this assessment considered whether your injury arose from the actions of management, and applies an objective assessment of whether [management action was reasonable](#) in the circumstances. Where this is the case, a claim is unable to be accepted (*Section 32(5)*).

Information considered (*information is sometimes called evidence*)

- Your Submission
- Employer Submission
- Work Capacity Certificate from Dr Peter Hawes
- Medical opinion from Dr Peter Hawes

Reasons for the decision

In reaching a decision, I review and consider the information available. Here is a summary of my findings.

WorkCover Queensland ("WorkCover") received an application for compensation for your injury on 1 July 2024.

Medical Information

On 2 July 2024, WorkCover received a Work Capacity Certificate from Dr Peter Hawes diagnosing you with "anxiety, stress" as a result of *"Harassment at work; ongoing breaking of workplace rules by bosses, victimizing him"*.

On 2 September 2024, Dr Hawes advised WorkCover that your injury was caused by "Ethical complaint of manager not following rules, he made a complaint and management took no action, pay been withheld and Roster guideline not been followed."

Your Submission

On 15 July 2024, you advised WorkCover that you have been treated unfairly at work.

1. Your manager failed to follow department processes.
2. Management failed to take action to your complaint.

3. your manager failed to follow the roster guideline.
4. your wage payment been withheld.

Employer Submission

On 16 August 2024, your employer Metro South Hospital and Health Service ('MSHHS') advised WorkCover that

1. you had raised concerns against your manager failed to follow department process, however MSHHS advise those action your manager has taken was appropriate action.
2. WBHHS has taken step to manage your complaint however you have not provided particulars to your complain, therefore the investigation was closed.
3. MSHHS advised that they have followed roster guideline in scheduling your roster.
4. MSHHS advised that they have not withheld your pay. Your employer considered that your injury was caused by reasonable management action.

Your Additional Submission

On 29 August 2024, you have provided additional information nominating that your manager has failed to follow fatigue management. Whilst I acknowledge extensive evidence has been provided, the information provided does not substantiate the factors you have nominated. You advised that the business case regarding workplace changes was not shared with the team. From evidence provide by the employer an email was circulated to all employees requesting feedback. Regarding your pay query, your manager advised that as the query was outside three months you needed to contact payroll who will be able to investigate your concerns.

Employer Additional Submission

On 6 September 2024, MSHHS advised WorkCover that your pay was not withheld instead there was error made to your pay, your manager has taken reasonable steps to rectify the error. Your rostering follows the Hospital and Health Services General Employees (Queensland Health) Award - State 2015 Part 5-15 which outlines that employee is allowed a break for no less than 10 hours between end of shift to beginning of shift. MSHHS has complied with this requirement. Your Ethical standards Unit complaint has been looked into however as you reluctant to provide further information MSHHS are unable to take further action into the investigation.

Your Information

On 11 September 2024, you advised that the shifts between 17 and 18 March 2024 you had 7 hours between the two shifts.

Decision

For WorkCover to accept this claim, we need to be satisfied that you are a worker, and you sustained a personal injury arising out of or in the course of your employment, in accordance with Section 32 of the Workers' Compensation and Rehabilitation Act 2003 ("the Act").

In reviewing this application, I have considered the information provided by yourself, your employer, and the medical opinion of your treating doctor. I have made the following determination in relation to the factors that you have raised as causing your injury:-

1. Manager not following rules at workplace.
 - a. I acknowledge you are concerned that your manager failed to follow correct workplace process, however the current information does not support your nominated events.
2. Ethical complaint made but management failed to take action.
 - a. Your Ethical complaint has been actioned.
3. Your pay been withheld.
 - a. There is insufficient information to support that your pay has been withheld.
4. Roster guideline not been followed.

a. There is one occasion between 17 and 18 March 2024 that MSHHS failed to comply with their rostering guideline as they have only allowed 7 hours between shifts, where they are required to allow 10 hours between shifts.

On review of the information available to WorkCover Queensland I accept that you have suffered a personal injury and that your employment has been a significant contributing factor. When considering if you have suffered an injury as outlined in section 32 of the Act, I must also consider the exclusionary Section 32(5)(a) and (b) to your application for compensation. Whilst I acknowledge that MSHHS has failed to follow rostering guideline on one occasion, in a holistic view the other factors have been managed in line with MSHHS policies. The e failure to follow roster guidelines on one occasion is a blemish in their management action. It is my determination that the actions taken by your employer was reasonable and undertaken in a reasonable way. This means that I will apply the exclusionary Section 32(5)(a) and (b) to your application for compensation.

This means that WorkCover Queensland is unable to accept this claim

ATTACHMENT: INFORMATION TO SUPPORT YOU

HOW TO REQUEST AN EXTERNAL REVIEW

If you don't agree with this decision, there are review options available.

1. [External review](#): This service is completed by a Review Officer at the Workers' Compensation Regulator, which means it's free and independent, but not court-based. For more information, call 1300 739 021 or email reviewunit@oir.qld.gov.au.

Complete a review application [online](#) or [print a copy](#) and send to the Workers' Compensation Regulator. You have three months from receiving this letter to request an external review.

2. If unsatisfied with the external review in step 1, you may appeal to the [Queensland Industrial Relations Commission](#) (QIRC). Fees are payable if a solicitor or third party assists in this appeal.

There are other sources of assistance when considering an external review, including:

- [Queensland Council of Unions](#) – a workers' compensation advisory service on 1800 102 166.
 - [Queensland Law Society](#) – who can assist in finding a solicitor on 1300 367 757
-

TREATMENT OR SUPPORT OPTIONS

While everyone has different personal circumstances, the following options may be available:

- private health insurance
- sickness or accident cover through superannuation or income protection insurance
- compulsory third-party insurance if the injury is a result of a motor accident
- independently fund treatment or access the public health system.

Additional services are available for psychological and psychiatric conditions.

- 1300 MH CALL (1300 642 255) is a confidential mental health telephone triage service for Queenslanders that provides the first point of contact to public mental health services
 - Lifeline: 13 11 14 or www.lifeline.org.au
 - Beyondblue: 1300 224 636 or www.beyondblue.org.au
 - [Workers' Psychological Support Service](#): 1800 370 732 or info@wpss.org.au. Queenslanders experiencing a work related psychological injury can access support from a social worker.
-

DIFFICULTY WORKING DUE TO INJURY OR ILLNESS

The following options may be available if you are finding it difficult to work:

- access any remaining sick leave entitlements through your employer
- discuss working part-time or in an alternative role with your employer
- sickness or accident cover through superannuation, or [early access to your super](#)
- income protection insurance
- [The Salvation Army Australia Emergency Relief](#): 1300 371 288
- [Centrelink](#) payments and services available from the Australian Government.

131 Time for applying

- (1) An application for compensation is valid and enforceable only if the application is lodged by the claimant within 6 months after the entitlement to compensation arises.
- (2) If an application is lodged more than 20 business days after the entitlement to compensation arises, the extent of the insurer's liability to pay compensation is limited to a period starting no earlier than 20 business days before the day on which the valid application is lodged.
- (3) Subsection (2) does not apply if death is, or results from, the injury.
- (4) An insurer must waive subsection (1) for a particular application if it is satisfied that special circumstances of a medical nature, decided by a medical assessment tribunal, exist.
- (5) Also, an insurer may waive subsection (1) for a particular application if—
 - (a) it is satisfied that a doctor, nurse practitioner or dentist has assessed the injury as resulting in total or partial incapacity for work; and
 - (b) the claimant lodged the application within 20 business days after the first assessment under paragraph (a).
- (6) An insurer may waive subsection (1) or (2) for a particular application if the insurer is satisfied that a claimant's failure to lodge the application was due to—
 - (a) mistake; or
 - (b) the claimant's absence from the State; or
 - (c) a reasonable cause.

11 Who is a worker

- (1) A **worker** is a person who—
 - (a) works under a contract; and
 - (b) in relation to the work, is an employee for the purpose of assessment for PAYG withholding under the *Taxation Administration Act 1953* (Cwlth), schedule 1, part 2-5.
- (2) Also, schedule 2, part 1 sets out who is a **worker** in particular circumstances.
- (3) However, schedule 2, part 2 sets out who is not a **worker** in particular circumstances.
- (4) Only an individual can be a **worker** for this Act.

32 Meaning of injury

- (1) An **injury** is personal injury arising out of, or in the course of, employment if the employment is a significant contributing factor to the injury.
- (2) However, employment need not be a contributing factor to the injury if section 34(2) or 35(2) applies.
- (3) **Injury** includes the following—
 - (a) a disease contracted in the course of employment, whether at or away from the place of employment, if the employment is a significant contributing factor to the disease;
 - (b) an aggravation of the following, if the aggravation arises out of, or in the course of, employment and the employment is a significant contributing factor to the aggravation—
 - (i) a personal injury other than a psychiatric or psychological disorder;
 - (ii) a disease;
 - (iii) a medical condition other than a psychiatric or psychological disorder, if the condition becomes a personal injury or disease because of the aggravation;
 - (ba) an aggravation of a psychiatric or psychological disorder, if the aggravation arises out of, or in the course of, employment and the employment is the major significant contributing factor to the aggravation;
 - (c) loss of hearing resulting in industrial deafness if the employment is a significant contributing factor to causing the loss of hearing;
 - (d) death from injury arising out of, or in the course of, employment if the employment is a significant contributing factor to causing the injury;
 - (e) death from a disease mentioned in paragraph (a), if the employment is a significant contributing factor to the disease;
 - (f) death from an aggravation mentioned in paragraph (b), if the employment is a significant contributing factor to the aggravation.
- (4) For subsection (3)(b) and (ba), to remove any doubt, it is declared that an aggravation mentioned in the provision is an injury only to the extent of the effects of the aggravation.
- (5) Despite subsections (1) and (3), **injury** does not include a psychiatric or psychological disorder arising out of, or in the course of, any of the following circumstances—
 - (a) reasonable management action taken in a reasonable way by the employer in connection with the worker's employment;
 - (b) the worker's expectation or perception of reasonable management action being taken against the worker;
 - (c) action by the Regulator or an insurer in connection with the worker's application for compensation.

Examples of actions that may be reasonable management actions taken in a reasonable way—

- action taken to transfer, demote, discipline, redeploy, retrench or dismiss the worker
- a decision not to award or provide promotion, reclassification or transfer of, or leave of absence or benefit in connection with, the worker's employment